

Drainage Board - October 8th, 2025

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=jGI-s28Ja6w
Publication Date	2025-10-09T01:55:19Z
Target Category	delaware_county

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1. Pre-Meeting Hearings & Committee Work Sessions

The transcript contains no record of a statutory public hearing or committee work session held prior to the regular meeting.

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer called the meeting to order [00:00:12](#), explicitly identifying it as the Delaware County Drainage Board October meeting.
- **Attendance:**
 - **Members Present:** Mr. Hamilton, Mr. Men (or Mr. Wigen/Wigan), Mr. Christie, Mr. Wisley, Mr. Borchers, Mr. Whitehead.
 - **Members Absent:** Not explicitly stated, though roll call records individual responses.
 - **Presiding Officer:** Mr. Hamilton (acting as chair/lead facilitator).

3. Preliminary & Procedural Business

- **Ceremonial Openings:** The board stood and recited the Pledge of Allegiance [00:00:16](#).
- **Approval of Minutes:** The September meeting minutes were presented for additions or corrections [00:00:54](#). Upon a motion and a second, the minutes were approved via roll call vote [00:01:05](#).

4. Substantive Business & Board Action

- **00:01:18 Table Business: Head Wall Project Proposal (Jerry Shroyer / Mr. Surveyor)**
 - **Sponsor / Presenter:** Tom (Surveyor) / Jerry Shroyer.
 - **Deliberation Summary:** The board discussed a tabled item regarding a concrete head wall for a 24-inch tile installed over recent years that daylighted into an open ditch. The old head wall was sized for a 16-inch tile and is broken down. Mr. Shroyer provided a new proposal from a concrete contractor for \$16,440 and offered to pay half (\$8,220) out-of-pocket because the site is dry and located roughly 1,500 feet off the road. The Surveyor noted that leaving it unaddressed would cause washout issues during heavy spring rains, requiring rip-rap anyway.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved to move forward with the project and contractor selected by Mr. Shroyer, with Mr. Shroyer paying half the expense, by roll call vote **00:05:38**.
- **00:05:46 Table Business: Arnold Excavating Claim & New Completion Bids**
 - **Sponsor / Presenter:** Mr. Surveyor / Board Attorney / Mr. Hamilton.
 - **Deliberation Summary:** The board revisited a tabled claim from Arnold Excavating regarding incomplete work on the Racer Ditch cleanup job. Three new contractor quotes to finish the work were opened and read aloud:
 - *Bold Camp Excavating:* \$55,800 **00:10:25** (noted concerns regarding burn bans and completion dates).
 - *Butler Masonry:* \$51,000 **00:10:49**.
 - *JJC Excavating:* Option 1 (Debrushing and cleaning per spec sheet) for \$33,528; Option 2 (Debrushing/cleaning plus dipping and spreading spoil) for \$47,498 **00:11:31**.
 - **Deliberation on Contracts:** The board determined JJC Excavating's Option 1 (\$33,528) was the lowest responsive quote for finishing the required work **00:12:49**.
 - **Motions & Actions:**
 1. Motion to select JJC Excavating for \$33,528 to finish the Racer Ditch cleanup job. **Approved by roll call vote 00:14:15.**
 2. Subsequent discussion regarding paying Mr. Arnold a partial amount based on work completed (the difference between JJC's initial bid and new quote). Citing previous legal advice from Mr. Murphy to table the precise claim amount for further review **00:15:27**, the board withdrew immediate action on the payout.
 3. Motion to table the payment claim to Mr. Arnold until the next meeting.
Approved by roll call vote 00:16:47.
- **00:17:07 New Business: Mr. How's Petition for New Regulated Drain (700 East & 100 North)**

- **Sponsor / Presenter:** Mr. Surveyor / Mr. Hamilton.
- **Deliberation Summary:** The Surveyor presented a preliminary report 00:18:14 regarding a mutual drain running parallel to County Road 700 East ending at 100 North, filed under IC 36-9-27-54 to become a regulated drain. While the Surveyor completed a preliminary report finding the project practicable and beneficial to public highways, the official petition has not yet been formally filed in the office with all required statutory elements (such as attorney representation, specific cost-damage statements, and petitioner-led legal notices). Furthermore, GIS review revealed a small sliver of land along the 1,500-foot stretch is owned by the County Commissioners 00:26:01, requiring coordination with legal counsel regarding paperwork. Engineering design is ready via Lock Mueller Group once the public hearing and notice requirements are satisfied 00:24:45.
- **Action & Vote Disposition:** No formal vote; consensus for the Surveyor and board members to coordinate with legal counsel and assist the petitioner (Mr. How) in fulfilling statutory filing and notice requirements.
- **00:34:57 Old Business & Project Updates:**
 - *Don Chambers Project (Romney Street):* The Surveyor reported speaking with Mr. Chambers, explaining that because no regulated drain is nearby (roughly half a mile west) and the issue is between private neighbors, the drainage board has no jurisdiction 00:35:05. Matter closed.
 - *Hamilton Township / Gorski Private Crossing:* Discussed a potential private crossing request by Randy Gorski near Country Village / Wheeling 00:37:10. The Surveyor confirmed no formal application has been filed yet, and the board agreed that any future application will require review by an engineering service provider to prevent storm water restrictions 00:38:05.
 - *A. McConnell Drain:* Crop harvesting is progressing (~35% harvested, expected 75% in 10 days). A site visit by Banning Engineering is scheduled for October 28th to walk the drain and begin reconstruction design 00:38:42.
 - *Spraying Program Review:* The Surveyor discussed weed/brush spraying contracts with K&H, noting challenges due to crop timing and limited local vendors with Category 5 aquatic licenses 00:41:55. The board requested a complete spreadsheet summary of feet sprayed, locations, and costs incurred this year, and directed the Surveyor to compile a broader list of licensed applicators and debrushing project sites for early-year bidding in January/February 00:44:00.
 - *Pond Ordinance:* The Surveyor reported the draft pond ordinance remains with legal counsel and will be forwarded to the County Commissioners once finalized 00:47:57.
- **00:49:54 Maintenance Claims Approval**
 - **Sponsor / Presenter:** Board Member / Surveyor.
 - **Deliberation Summary:** Routine maintenance claims totaling \$13,474.43 00:50:10 were presented to the board for review.

- **Action & Vote Disposition:** Approved by roll call vote 00:50:20.
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5. Open Public Comment / Citizen Forum

The provided transcript contains no designated open public comment period or general citizen forum near the conclusion of the meeting (public remarks were confined to specific agenda items).

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - Next meeting date noted as October 20th 00:28:03 (referencing ongoing procedural timelines).
 - The digital dashboard was reviewed and noted to be current 00:49:36.
 - **Adjournment:** Upon a motion duly made and seconded, the meeting was concluded via a voice vote (All in favor say aye) 00:50:36.
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